The National Human Rights Commission is an autonomous body constituted on 12th October 1993 under the protection of Human rights Act,1993. It consists of a chairman and few other members. 3 from judiciary and 4 from other department NHRC is responsible for the protection and promotion of human rights in India defined by the Act as rights relating to life, liberty, equality and dignity of the individual guaranteed by the Constitution or embodied in the international covenants the office is located in New Delhi .

**Functions of NHRC**

- To inquire into the violation of human rights or negligence in the prevention of such violation by a public servant
- To intervene in court proceedings relating to human rights
- To undertake and promote research in the field of human rights
- To engage in human rights education among various sections of society
- To encourage the effects of NGOs and institutions working in the field of human rights.

## 3.6 State Human Rights Commission(SHRC)



Every state in India has a State Human Rights Commission established in accordance with the power conferred on the state under section 21 of the Protection of Human Rights Act, 1993. The protection and promotion of human rights constitute the principal concern of the Commission. Moreover, the procedures adopted by the Commission to conduct its proceedings, the suo motu actions taken on complaints regardless of the sources received and the transparency of the proceedings of the SHRC add strength to its functioning in a state. The office is the Human Rights is located in Chennai.

**Functions of SHRC**

- The SHRC shall enquire into violation of human rights in respect of matters specified in the state and concurrent lists.
- Its objectives and duties are the same as NHRC, but confined only to the state. It has a chairman and two members.
- It has the power of a civil court and can take cognizance of cases if received or in suo motu.
- It can also recommend compensation to victims.

### 3.6.1 Child Rights

Apart from the fundamental rights described by the Constitution, we have to ensure certain other rights.

A child is a person who has not completed the age of 18 years i.e. a minor as per UNO. This principle is exhibited in Articles 25 of the Universal Declaration of Human Rights. Based on these principles, the declaration of the Rights of the child was accepted and adopted in the UN General Assembly on 20th November, 1989.

- Right to life
- Right to family environment
- Right to Education
- Right to benefit from Social security
- Right against sexual exploitation
- Right against sale or trafficking
- Right against other forms of exploitation like Child labour.

**Right to life**

A child has the right to survive even before its birth. The right to survival also includes the right to be born, the right to basic needs of food, shelter and clothing and a dignified living.

**Right to Family Environment**

A child has the right to live a normal child-hood in a family environment. Children who have been left destitute, abandoned or orphaned also have the right to live. These children can be given for adoption to caring families.



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